



DEPARTMENT OF HUMAN SERVICES

County Personnel and Merit System (Volume 2)

RULE MANUAL VOLUME 2, COUNTY PERSONNEL RULES

9 CCR 2502-1

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

STATEMENT OF BASIS AND PURPOSE, FISCAL IMPACT AND SPECIFIC STATUTORY AUTHORITY OF REVISIONS MADE TO VOLUME 2

Revisions to sections 2.221; 2.241.1; 2.240.21 through 2.240.9 were finally adopted at the 12/6/85 State Board meeting with an effective date of 2/1/86 (Document 2). Statement of Basis and Purpose, Fiscal Impact, and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Administrator, Department of Social Services.

Revisions to sections 2.221; 2.221.1; 2.221.22; 2.421.5; 2.423.4; 2.425.2; were finally adopted and sections 2.600 through 2.610.2 were deleted at the 12/6/85 State Board meeting with an effective date of 2/1/86 (Document 1). Statement of Basis and Purpose, Fiscal Impact, and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Administrator, Department of Social Services.

Revisions to sections 2.113.13, 2.113.14; 2.113.32; 2.212 were finally adopted at the 7/11/86 State Board meeting with an effective date of 9/1/86 (Document 1). Statement of Basis and Purpose, Fiscal Impact, and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Administrator, Department of Social Services.

Rewrite of Volume 2 Staff Manual was finally adopted at the 11/7/86 State Board meeting with an effective date of 1/1/87 (Document 16). Statement of Basis and Purpose, Fiscal Impact, and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Administrator, Department of Social Services.

Revisions to sections 2.040 through 2.980 were finally adopted following publication at the 5/1/87 State Board meeting, with an effective date of 7/1/87 (Document 1). Statement of Basis and Purpose, Fiscal Impact, and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Administrator, Department of Social Services.

Revisions to section 2.272 were finally adopted following publication at the 6/5/87 State Board meeting with an effective date of 9/1/87 (Document 11). Statement of Basis and Purpose, Fiscal Impact, and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Administrator, Department of Social Services.

Revisions to sections 2.000 through 2.980 were finally adopted following publication at the 9/11/87 State Board meeting, with an effective date of 11/1/87 (Document 23). Statement of Basis and Purpose, Fiscal Impact, and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Administrator, Department of Social Services.

Revisions to sections 2.272 and 2.424 through 2.428 were finally adopted following publication at the 11/6/87 State Board meeting, with an effective date of 1/1/88 (Documents 2 and 5). Statement of Basis and Purpose, Fiscal Impact, and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Administrator, Department of Social Services.

Revisions to sections 2.000 – 2.031, 2.800 – 8.822 and 2.980 were finally adopted following publication at the 5/6/88 State Board meeting, with an effective date of 7/1/88 (CSPR# 87-12-29-1). Statement of Basis and Purpose, Fiscal Impact, and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Administrator, Department of Social Services.

Revisions to sections 2.221 – 2.242, 2.531 – 2.532, 2.642 – 2.660, 2.800 – 8.811, 2.850 – 2.880, 2.930 and “Definitions” were finally adopted following publication at the 11/4/88 State Board meeting, with an effective date of 1/1/89 (CSPR# 88-8-26-1, 88-8-26-2, and 88-8-29-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Liaison, Department of Social Services.

Revisions and additions to sections 2.000 – 2.031, 2.035, 2.424 – 2.426 and 2.531 – 2.532 were finally adopted following publication at the 2/3/89 State Board meeting, with an effective date of 4/1/89 (CSPR# 88-11-2-1 and 88-11-21-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Liaison, Department of Social Services.

Revisions to section 2.532 were adopted emergency at the 6/2/89 State Board meeting, with an effective date of 6/2/89 (CSPR# 89-4-26-2). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Liaison, Department of Social Services.

Revisions to section 2.532 were final adoption of emergency at the 7/7/89 State Board meeting, with an effective date of 6/2/89 (CSPR# 89-4-26-2). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Liaison, Department of Social Services.

Revisions to section 2.000 – 2.031 were final adoption following publication at the 10/6/89 State Board meeting, with an effective date of 12/1/89 (CSPR# 89-2-22-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Liaison, Department of Social Services.

Revisions to sections 2.035, 2.246–2.261, 2.272, 2.531–2.532 and 2.812 were final adoption following publication at the 11/3/89 State Board meeting, with an effective date of 1/1/90 (CSPR#s 89-7-31-1 and 89-8-17-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Liaison, Department of Social Services.

Revisions to section 2.272 were final adoption following publication at the 2/2/90 State Board meeting, with an effective date of 4/1/90 (CSPR# 89-12-13-2). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Liaison, Department of Social Services.

Revisions to sections 2.900 – 2.910 and 2.920 – 2.930 were final adoption following publication at the 10/5/90 State Board meeting, with an effective date of 12/1/90 (CSPR# 90-2-1-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Liaison, Department of Social Services.

Revisions to sections 2.200 – 2.264, 2.272, and Definitions were final adoption following publication at the 11/2/90 State Board meeting, with an effective date of 2/1/91 (CSPR# 90-8-7-2). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Liaison, Department of Social Services.

Revisions to sections 2.000 – 2.031, 2.032, 2.222 – 2.240 and 2.270 – 2.272 were final adoption following publication at the 11/1/91 State Board meeting, with an effective date of 1/1/92 (CSPR#'s 91-8-20-2 and 91-8-20-3). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Liaison, Department of Social Services.

Revisions to sections 2.400 and 2.429 through 2.453 were adopted emergency at the 12/6/91 State Board meeting, with an effective date of 1/1/92 (CSPR# 91-11-18-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Liaison, Department of Social Services.

Revisions to sections 2.400 and 2.429 through 2.453 were final adoption of emergency at the 1/10/92 State Board meeting, with an effective date of 1/1/92 (CSPR# 91-11-18-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Liaison, Department of Social Services.

Revisions to sections 2.400 – 2.423 and 2.700 – 2.741 were final adoption following publication at the 1/10/92 State Board meeting, with an effective date of 3/1/92 (CSPR# 91-9-24-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Liaison, Department of Social Services.

Revisions to sections 2.272 were final adoption following publication at the 5/1/92 State Board meeting, with an effective date of 7/1/92 (CSPR# 92-2-26-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Liaison, Department of Social Services.

Revisions to sections 2.300 – 2.321, 2.524 – 2.532, 2.653 – 2.741, and 2.822 – 2.840 were final adoption following publication at the 10/2/92 State Board meeting, with an effective date of 12/1/92 (CSPR# 92-7-27-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Liaison, Department of Social Services.

Revisions to section 2.272 were final adoption following publication at the 11/6/92 State Board meeting, with an effective date of 1/1/93 (CSPR# 92-7-27-2). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Liaison, Department of Social Services.

Revisions to sections 2.100 – 2.112, 2.300 – 2.335, 2.354 – 2.423, and 2.524 – 2.730 were final adoption following publication at the 11/5/93 State Board meeting, with an effective date of 1/1/94 (CSPR# 93-8-9-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Liaison, Department of Social Services.

Revisions to sections 2.200 – 2.221, 2.251 – 2.264, 2.800 – 2.890, and “Definitions” were final adoption following publication at the 12/3/93 State Board meeting, with an effective date of 2/1/94 (CSPR# 93-8-26-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Liaison, Department of Social Services.

Revisions to sections 2.100 – 2.110, 2.246, 2.341 – 2.354, 2.427 – 2.453, 2.600 – 2.642, 2.700 – 2.750, 2.822 – 2.830, and “Definitions” were final adoption following publication at the 3/4/94 State Board meeting, with an effective date of 5/1/94 (CSPR# 93-12-21-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of the State Board Liaison, Department of Social Services.

Revisions to section 2.272 were final adoption following publication at the 8/5/94 State Board meeting, with an effective date of 11/1/94 (CSPR# 94-5-13-3). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of External Affairs, Department of Human Services.

Revisions to sections 2.270 through 2.272 were final adoption following publication at the 11/4/94 State Board meeting, with an effective date of 1/1/95 (CSPR# 94-8-25-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of External Affairs, Department of Human Services.

Revisions to sections 2.040 – 2.264, 2.354 – 2.453, 2.532, 2.632 – 2.660, 2.742, 2.921 – 2.930, and “Definitions” were final adoption following publication at the 8/4/95 State Board meeting, with an effective date of 10/1/95 (CSPR# 95-4-21-2). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of External Affairs, Department of Human Services.

Revisions to sections 2.272 and 2.920 were final adoption following publication at the 11/3/95 State Board meeting, with an effective date of 1/1/96 (CSPR#s 95-7-28-1 and 95-8-22-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of External Affairs, Department of Human Services.

Revisions to sections 2.270 through 2.272 were final adoption following publication at the 11/8/96 State Board meeting, with an effective date of 1/1/97 (CSPR# 96-8-15-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of External Affairs, Department of Human Services.

Revisions to sections 2.246, 2.272, 2.600 through 2.636, and 2.900 through 2.980 were final adoption following publication at the 3/7/97 State Board meeting, with an effective date of 5/1/97 (CSPR# 96-12-27-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of External Affairs, Department of Human Services.

Revisions to sections 2.000 through 2.030 were final adoption following publication at the 8/1/97 State Board meeting, with an effective date of 10/1/97 (CSPR# 97-6-13-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of External Affairs, Department of Human Services.

Revisions to sections 2.200 and 2.272 were final adoption following publication at the 11/7/97 State Board meeting, with an effective date of 1/1/98 (CSPR# 97-7-24-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of External Affairs, Department of Human Services.

Revisions to section 2.200 Table of Contents and sections 2.230 – 2.232 were final adoption following publication at the 10/2/98 State Board meeting, with an effective date of 12/1/98 (CSPR# 98-8-4-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of External Affairs, Department of Human Services.

Revisions to sections 2.272 through 2.280, 2.341 through 2.351, 2.520 through 2.531, and 2.620 through 2.640 were final adoption following publication at the 11/6/98 State Board meeting, with an effective date of 1/1/99 (CSPR#s 98-8-21-1 and 98-8-26-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of External Affairs, Department of Human Services.

Revisions to sections 2.272 through 2.280 were final adoption following publication at the 11/5/99 State Board meeting, with an effective date of 1/1/2000 (CSPR# 99-7-30-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Office of External Affairs, Department of Human Services.

Entirely rewritten manual was final adoption following publication at the 05/04/2001 State Board meeting, with an effective date of 7/1/2001 (CSPR# 00-10-23-1). Statement of Basis and Purpose and specific statutory authority for these revisions were incorporated by reference into the rule. These materials are available for review by the public during normal working hours at the Colorado Department of Human Services, Office of Performance Improvement. Boards and Commissions Division.

2.000 COUNTY PERSONNEL

2.100 COUNTY RESPONSIBILITIES

Effective January 1, 2001, statutory authority for State administered county merit systems was repealed.

Each county shall provide for a merit system for the selection, retention, and promotion of employees of the county department of human/social services. The county's merit system for personnel administration shall meet the criteria set forth in these rules and the Federal Regulations issued by the Office of Personnel Management of the U.S Department of Health and Human Services found at 5 C.F.R Section 900.601 et seq (2018) which are hereby incorporated by reference. No later editions or amendments are incorporated. These regulations are available at no cost from the U.S Services Administration, Office of Communications, 5600 Fishers Lane, Rockville, MD 20857, or at <http://www.ecfr.gov/>. These regulations are also available for public inspection and copying at the Colorado Department of Human Services, Office of Community Partnerships, 1575 Sherman St. Denver, CO 80203, during regular business hours.

A county may combine with another county or group of counties to form a district to provide a merit system for its employees.

2.200 MINIMUM CRITERIA FOR THE COUNTY MERIT SYSTEM

The county merit system shall provide for the following:

- A. The recruitment, selection, and advancement of employees shall be on the basis of relative abilities, knowledge, and skills, including open consideration of qualified applicants for initial appointment.
- B. The system shall provide equitable and adequate compensation.
- C. The employees shall be trained as needed to assure high quality of performance.
- D. The system shall provide for retaining employees on the basis of the adequacy of their performance, correcting inadequate performance, and separating employees whose inadequate performance cannot be corrected.
- E. The system shall assure fair treatment of applicants and employees in all aspects of personnel administration without regard to political affiliation, race, color, national origin, sex, religious creed, age, or disability and with proper regard for the privacy and constitutional rights of such persons as citizens. This fair treatment principle shall include compliance with all Federal equal opportunity and nondiscrimination laws.
- F. The system shall assure that employees are protected against coercion for partisan political purposes and are prohibited from using their official authority for the purpose of interfering with or affecting the results of an election or a nomination for office.

2.210 Certification of Merit System

Every two years beginning January 1, 2025 each county shall annually submit to the Colorado Department of Human Services a certification that the above criteria are being maintained by the county department of human/social services. This certification must be received as prescribed by the State Department on or before January 1 of every other year beginning January 2025. The certification must be validated by the county board of commissioners or designee.

2.300 MINIMUM QUALIFICATIONS FOR COUNTY MERIT SYSTEM POSITIONS

Minimum qualifications for certain positions are established as determined by the State Board of Human Services to necessitate uniform standards.

2.320 Minimum Qualifications for Professional Services in Child Welfare or Adult Protective Services

The county merit system shall adhere to the following minimum qualifications or standards in the hiring, retention, and promotion of employees who supervise or provide professional services in child welfare, as outlined in 12 CCR 2509-7, 7.603.1, or adult protective services, as outlined in 12 CCR 2518-1, 30.310.

2.330 Waiver Process

If proven recruitment difficulties exist, county departments may request a waiver of educational and/or training requirements as per 12 CCR 2509-7, 7.603.1 (G-H) for child welfare services and as per 12 CCR 2518-1, 30.310 (B) for adult protective services.

2.400 MAXIMUM SALARY REIMBURSEMENT LEVEL FOR COUNTIES

The maximum salary reimbursement level shall not exceed the amount authorized for salaries by the county's merit system.

Editor's Notes

History

Entire rule eff. 11/01/2018.

Rule 2.210 eff. 03/01/2024.